

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
RICHMOND, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ANTHANASIOU
HEARING DATE: 01/13/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-07684
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. JASON RAMIREZ
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR MONETARY SANCTIONS
FILED BY: RAMIREZ, JASON C
TENTATIVE RULING

Defendant filed a Motion for Monetary Sanctions on November 13, 2025, against the Plaintiff. The Motion was scheduled for January 13, 2026.

At the time of the court's review, no response has been filed by the Plaintiff, but there is no proof that the papers concerning the motion have been served on the Plaintiff.

Disposition

The Court finds and orders as follows:

The court will continue the Motion to March 13, 2026, at 9 a.m. and the Defendant must serve the Plaintiff with the appropriate papers.

2. 9:00 AM CASE NUMBER: L25-05728

CASE NAME: JPMORGAN CHASE BANK N.A. VS. SHIRLEY SMITH

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Plaintiff filed, on December, 2025, an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff attached a proof of service.

Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

Plaintiff, in a declaration attached to their Motion, represented that the Defendant never responded to a Request for Admission, that was served by mail on Defendant on August 11, 2025.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

The court makes the following findings:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

3. 9:00 AM CASE NUMBER: L25-08135
CASE NAME: SYNCHRONY BANK VS. MARISSA HARVEY
*HEARING ON MOTION IN RE: COMPEL ARBITRATION AND STAY PROCEEDINGS
FILED BY:
TENTATIVE RULING:

Defendant Marissa Harvey's No response has been filed by the Plaintiff.

Background

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

Analysis

Defendant's motion contends that the parties' contract "contains a mandatory arbitration clause ..." See Declaration of Marissa Harvey in support of her motion, along with Exhibit A, (Cardmember agreement with "Arbitration Clause")

Defendant's motion constitutes a demand and notice to arbitrate. See Arbitration Clause, ¶7.

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. Defendant shall initiate the arbitration process in accordance with the Arbitration